LOAN AGREEMENT

Eastlake Health Center | Buffalo, NY

Borrower	Eastlake Health Center Owner LLC
Lender	Cobalt Bridge Lending
Collateral	Eastlake Health Center
Loan Amount	$38,070,000
Rate	5.83% Fixed
Closing Date	December 22, 2019

1. Loan and Interest. Lender agrees to make a loan to Borrower in the principal amount of $38,070,000. The loan shall bear interest at a fixed rate of 5.83% per annum, calculated on an Actual/360 basis. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

2. Maturity and Amortization. The loan matures 4 years from the Closing Date. Monthly payments shall be interest-only for the first 5 months and thereafter based on a 30-year amortization schedule. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. Time is of the essence with respect to each and every provision of this instrument.

3. Prepayment. Borrower may prepay the loan in whole subject to yield maintenance or defeasance, except during the open period at the final ninety days before maturity. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NY. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

4. Collateral. The loan is secured by a first-lien mortgage on Eastlake Health Center, an assignment of leases and rents and a security interest in all personal property. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

5. Financial Covenants. Borrower shall maintain a minimum debt service coverage ratio of 1.25x and a maximum loan-to-value ratio of 65%, tested quarterly. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NY. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

6. Reserves and Escrows. Borrower shall fund monthly escrows for real estate taxes, insurance premiums and replacement reserves of $250 per unit annually. Time is of the essence with respect to each and every provision of this instrument. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

7. Reporting Requirements. Borrower shall deliver quarterly operating statements and rent rolls within forty-five days after quarter-end and audited annual financials within one hundred twenty days after year-end. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

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8. Cash Management. Upon a Trigger Event, all revenues shall be deposited in a lender-controlled lockbox account. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NY. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

9. Events of Default. Events of default include failure to pay when due, breach of covenants, bankruptcy, transfer of the Property without consent and material misrepresentation. Time is of the essence with respect to each and every provision of this instrument. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NY.

10. Recourse Carve-Outs. The loan is non-recourse to Borrower except for customary carve-outs including fraud, misappropriation, environmental indemnity and voluntary bankruptcy. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. Time is of the essence with respect to each and every provision of this instrument.

11. Loan and Interest. Lender agrees to make a loan to Borrower in the principal amount of $38,070,000. The loan shall bear interest at a fixed rate of 5.83% per annum, calculated on an Actual/360 basis. Time is of the essence with respect to each and every provision of this instrument. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

12. Maturity and Amortization. The loan matures 4 years from the Closing Date. Monthly payments shall be interest-only for the first 33 months and thereafter based on a 30-year amortization schedule. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NY. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

13. Prepayment. Borrower may prepay the loan in whole subject to yield maintenance or defeasance, except during the open period at the final ninety days before maturity. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

14. Collateral. The loan is secured by a first-lien mortgage on Eastlake Health Center, an assignment of leases and rents and a security interest in all personal property. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

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16. Reserves and Escrows. Borrower shall fund monthly escrows for real estate taxes, insurance premiums and replacement reserves of $250 per unit annually. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

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20. Recourse Carve-Outs. The loan is non-recourse to Borrower except for customary carve-outs including fraud, misappropriation, environmental indemnity and voluntary bankruptcy. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

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22. Maturity and Amortization. The loan matures 8 years from the Closing Date. Monthly payments shall be interest-only for the first 27 months and thereafter based on a 30-year amortization schedule. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

23. Prepayment. Borrower may prepay the loan in whole subject to yield maintenance or defeasance, except during the open period at the final ninety days before maturity. Time is of the essence with respect to each and every provision of this instrument. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NY.

24. Collateral. The loan is secured by a first-lien mortgage on Eastlake Health Center, an assignment of leases and rents and a security interest in all personal property. Time is of the essence with respect to each and every provision of this instrument. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NY.

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32. Maturity and Amortization. The loan matures 4 years from the Closing Date. Monthly payments shall be interest-only for the first 29 months and thereafter based on a 30-year amortization schedule. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

33. Prepayment. Borrower may prepay the loan in whole subject to yield maintenance or defeasance, except during the open period at the final ninety days before maturity. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

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42. Maturity and Amortization. The loan matures 4 years from the Closing Date. Monthly payments shall be interest-only for the first 39 months and thereafter based on a 30-year amortization schedule. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

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Signatures

IN WITNESS WHEREOF, the parties have executed this instrument as of the date first written above.

_____

Eastlake Health Center Owner LLC

By: Robert Mitchell Title: Managing Member Date: 12/22/2019

_____

Bluebird Dermatology

By: Andre Chen Title: Managing Member Date: 12/22/2019

Exhibit A - Property

Eastlake Health Center, 3408 Peachtree Boulevard, Buffalo, NY 44465. Parcel containing approximately 14.31 acres, together with all improvements thereon.

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